

JUDGMENT SHEET
IN THE LAHORE HIGH COURT
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT
JUDGMENT

I.C.A. No.157/2023

Federation of Pakistan through
Secretary Ministry of Defense,
Islamabad etc.

VS.

Kareem Nawaz etc.

Date of hearing	06.10.2025
Appellants by	Mr. Atta-ul-Manan Malik, Assistant Attorney General alongwith, Kashif Nadeem, Advocate for PAF, Squadron Leader Muhammad Nadeem Sattar; Yasir Javaid, LDC & Muhammad Arbaz, UDC
Respondents No.6, 7, 9 to 16 by	Kanwar Sajid Ali, Assistant Advocate General
Private Respondents by	Mr. Muhammad Sohail Iqbal Bhatti, Rauf Farooq Bhatti, Ch. Shakeel Akhtar Sindhu and Barrister Faiz Rasool, Advocates

Ch. Muhammad Iqbal, J:- Through this Intra Court Appeal, the appellants have challenged the validity of judgment dated 12.05.2022 passed by the learned Single Judge in Chamber whereby Writ Petition No.2576/2022 of the respondents was allowed and notification under Section 4, 17 (4) & 6 of the Land Acquisition Act, 1894 was declared void and stuck down.

2. Brief facts of the case as stated by learned counsel for the appellants are that the respondents filed W.P. No.2576/2022 with the contention that they are owners in possession of the land situated in Mouza Khor Sajri Wahan, Mouza Alamdi Surah and Mouza Tindni. The Land Acquisition Collector issued notification under Section 4 of the Land Acquisition Act, 1894 on 20.07.2020 which was gazetted on 22.07.2020 whereby the land of the respondents was intended to be acquired for Pakistan Air

Force operational purposes. That the said notification was not in the knowledge of the respondents and after gaining knowledge respondents No.1, 4 & 23 challenged the said notification through filing W.P. No.10654/2021 which was disposed of vide order dated 09.07.2021 by this Court who transmitted the petition to the District Collector, Multan with a direction to treat it as representation of the said writ petitioners and decide the same as per law.

In compliance of this Court's order dated 09.07.2021, the District Collector, Multan decided the matter and vide order dated 18.10.2021 rejected the representation of the writ petitioners. Being dissatisfied with above order, the said petitioners and others filed W.Ps. No.18609/2021 & 18617/2021 challenging therein the vires of notification dated 20.07.2020 under Section 4 of the Act, 1894. This Court vide order dated 29.11.2021 transmitted the said Writ Petitions as representation to the District Collector, Multan who vide order dated 10.02.2022 again rejected the said representation. The respondents challenged the said order of the District Collector as well as notification dated 20.07.2020 under Section 4 of the Act, 1894 through the W.P. No.2576/2022 with the prayer as under:-

“For the foregoing reasons it is very humbly prayed that the impugned order dated 10.02.2022 passed by the District Collector, Multan may very graciously be declared as illegal, unlawful, not speaking and ab-initio null and void order and by setting-aside the same, petitioners' representation against the notification No.89/DC/LAC dated 20.07.2020 may kindly be accepted in the supreme interest of justice.”

The said Writ Petition was allowed by the learned Single Judge in Chamber who declared the notification under Sections 4, 6, 17 (4) of the Act, 1894 *ibid* as void and struck down the same through the impugned judgment dated 12.05.2022. Hence, this appeal.

3. Arguments heard. Record perused.

4. The learned Single Judge in Chamber passed the impugned judgment on 12.05.2022 and the appellants instituted this I.C.A on 01.06.2022. As per Rule 4, Chapter 1-A, Volume V of the Lahore High Court Rules and order read with Article 151 of the Limitation Act, 1908, the period prescribed for filing an Intra Court Appeal is 20 days. The said provisions are reproduced as under:-

Every Intra Court Appeal to the High Court under the Law Reforms Ordinance, 1972 from a judgment of a Judge sitting singly shall be presented within 20 days from the date of judgment appealed from, unless the admitting Bench in its discretion, for good cause shown, in writing, grants further time. In an Intra Court Appeal the memorandum of appeal need not be accompanied by a copy of decree, order or judgment appealed from. The period of limitation prescribed in this rule shall be computed in accordance with the provisions of section 12 of the Limitation Act, 1908.”

Description of Appeals	Period of limitation	Time from which period begins to run
151. From a decree or order of a High Court in the exercise of its original jurisdiction.	Twenty days	The date of the decree or order.

Further for institution of Intra Court Appeal there is no any requirement of any attested copies of order / judgment impugned accompanying in the said appeal. Reliance in this regard is placed on *The Inspector General of Police, Punjab through District Police Officer versus Abdus Salam and another* (2019 CLC 1156) & *National Bank of Pakistan through Attorney of the Bank versus Khalid Javed Qureshi and 12 others* (PLD 2013 Lahore 269). When the above provisions confronted to learned counsel for the respondents, he frankly admitted that Intra Court Appeal can be filed within stipulated time without appending certified copy of the impugned order / judgment.

5. Now advertng to the main lis in hand that land measuring 911 Kanal 02 Marla situated at Moza Kror, Sirajiwan, Tindni, Jehangirabad, Langrial and Alamdi Soa, Tehsil Multan City,

District Multan of the land owners was acquired for expansion of infrastructure of Pakistan Air Force Base, Multan. On the request of Group Commander, PAF Multan, the Deputy Commissioner, Multan on 20.07.2022 issued notification under Section 4 of the Land Acquisition Act, 1894 which was gazetted on 22.07.2022 by the Land Acquisition Collector. The notification was to be issued by Land Acquisition Collector, Multan but it was inadvertently co-signed by the Director Revenue Record, Air Headquarters, Islamabad and District Collector, Multan which is mere a procedural irregularity but on this ground alone, the notification for acquisition of land can neither be declared null and void nor it can be set aside.

6. Further, earlier the land owners instituted a Writ Petition No.10654/2021 challenging therein notification dated 20.07.2020 under Section 4 of the Land Acquisition Act, 1894. The said writ petition was disposed of vide order dated 09.07.2021 by transmitting the copy of same to the respondents to treat it as representation of the land owners and decide the same as per law. Thereafter, the respondents filed Writ Petitions [No.11242/2021, 10654/2021, 11376/2021, 18609/2021, 18617/2021] challenging therein notification dated 20.07.2020. The said petitions were disposed of on 29.11.2021 whereby said petitions were transmitted to Deputy Commissioner, Multan [Chairman, Price Assessment Committee] to treat it as representations of the writ petitioners / land owners and decide the same after hearing the parties. On 10.02.2022, the Deputy Commissioner, Multan after hearing the parties, rejected the said representations. Accordingly, on 24.02.2022, notification under Section 17(4) & 6 of the Act *ibid* was issued [which was, gazetted on 28.02.2022] with the description that land is urgently required. The Commissioner, Multan *Davison* held that Section 5(A) of the Act *ibid* is not applicable in this case. The Commissioner in case of urgency may direct the District Collector to issue notification

under Section 17(4) & 6 of the Act *ibid* by dispensing with the modalities of the Section 5-A of Act *ibid*. For ready reference, Section 6 & 17 of the Act *ibid* are reproduced as under:

“6. Declaration that land is required for a public purpose.– (1) Subject, to the provisions of Part VII of this Act, when the Commissioner is satisfied, after considering the report, if any, made under section 5-A, sub-section (2), that any particular land is needed for a public purpose, or for a Company, a declaration shall be made to that effect under the signature of Commissioner or of some officer duly authorised to certify such order:

Provided that no such declaration shall be made unless the compensation to be awarded for such property is to be paid by a Company, or wholly or partly out of public revenues or some fund controlled or managed by a local authority.

(2) The declaration shall be published in the official Gazette, and shall state the district or other territorial division in which the land is situate, the purpose for which it is needed, its approximate area, and, where a plan shall have been made of the land, the place where such plan may be inspected.

(3) The said declaration shall be conclusive evidence that the land is needed for a public purpose or for a Company, as the case may be; and, after making such declaration, the Commissioner may acquire the land in manner hereinafter appearing.

(4) When the area in respect of which the said declaration is made is less than the area previously notified under sub-section (1) of section 4, such previous notification, so far as it relates to the excess area, shall be deemed to have been superseded by the said declaration.

17. Special power in cases of urgency.– (1) In cases of urgency, whenever the Commissioner so directs, the Collector, though no such award has been made, may, on the expiration of fifteen days from publication of the notice mentioned in sub-section (1) of section 9, take possession of any land needed for public purposes or for a Company. Such land shall thereupon vest absolutely in the Government, free from all encumbrances:

Provided that the Commissioner shall not issue any direction to the Collector under this sub-section unless the Department of Government, the local authority, or Company, as the case may be, for which the land is being acquired, has first deposited the estimated cost of acquisition of such land as determined by the Collector of the district, keeping in view the provisions of sections 23 and 24.

(2) Whenever, owing to any sudden change in the channel of any navigable river or other unforeseen emergency, it becomes necessary for any Railway Administration to acquire the immediate possession of any land for the maintenance of their traffic or for the purpose of making thereon a river-side or *ghat* station, or of providing convenient connection with or access to any such station, or whenever owing to a similar emergency it becomes necessary for the Commissioner to acquire the immediate possession of any land for the purposes of maintaining traffic over a public road, the Collector may, immediately after the publication of the notice

mentioned in sub-section (1) and with the previous sanction of the Commissioner, enter upon and take possession of such land, which shall thereupon vest absolutely in the Government free from all encumbrances:

Provided that the Collector shall not take possession of any building or part of a building under this sub-section without giving to the occupier thereof at least forty-eight hours' notice of his intention so to do, or such longer notice as may be reasonably sufficient to enable such occupier to remove his movable property from such building without unnecessary inconvenience.

(3) In every case under either of the preceding sub-sections the Collector shall at the time of taking possession offer to the persons interested compensation for the standing crops and trees (if any) on such land and for any other damage sustained by them caused by such sudden dispossession and not excepted in section 24; and, in case such offer is not accepted, the value of such crops and trees and the amount of such other damage shall be allowed for in awarding compensation for the land under the provisions herein contained.

(4) In cases where in the opinion of the Commissioner, the provisions of sub-section (1) or sub-section (2) are applicable, the Commissioner may direct that the provisions of sections 5 and 5-A shall not apply, and, if he does so direct, a declaration may be made under section 6 in respect of the land at any time after the publication of the notification under sub-section (1) of section 4.”

7. As regard the findings rendered by the learned Single Judge in Chamber that the Rules 3, 4, 5, 6 of the Punjab Land Acquisition Rules, 1983 were not followed before issuance of the notification under Section 4 of the Land Acquisition Act, 1894, suffice it to say that on the request of the appellants, the Land Acquisition Collector issued notification under Section 4 of the Act *ibid* for public purpose. The acquiring agency made request to the District Collector for acquisition of land as per Rule 3 and after receiving the said request, under Rule 4 of the Rules *ibid*, the Collector after examining the feasibility and after taking into consideration the genuineness of public purpose involved therein, issued notification under Rule 6 of the Rules 1983 *ibid*. Thus, the notification was issued after observing the essence of the Rules, 1983.

8. Further, notification under Section 4 of the Land Acquisition Act, 1894 is only a demonstration of an intention of the Government for acquiring the said specified land which

notification is merely an introductory and tentative measures in nature with a caution to public at large that the government has intention to acquire such land for public purpose. This Court has elaborately discussed this issue in a judgment cited as Messrs Eden Developers (Pvt.) Ltd. Vs. Government of the Punjab and others (PLD 2017 Lahore 442) as under:

“6....There is no cavil or cudgel that the Provincial Government is fully vested with the power to issue a preliminary Notification expressing its intention for the acquisition of land likely to be needed for any **public purpose**. Section 4 of the Land Acquisition Act, 1894 is as under:-

“4. Publication of Preliminary notification and powers of officers thereupon. (I) Whenever is appears to the [Provincial Government] that land in any locality [is needed or] is likely to be needed for **any public purpose**, a notification to that effect shall be published in the official Gazette, and the Collector shall cause public notice of the substance of such notification to be given at convenient places in the said locality.

(2) Thereupon it shall be lawful for any officer, either generally or specially authorised by such Government in this behalf, and for his servants and workmen,--to enter upon and survey and take levels of any land in such locality;

to dig or bore into the sub-soil;

to do all other acts necessary to ascertain whether the land is adapted for such purpose;

to set out the boundaries of the land proposed to be taken and the intended line of the work (if any) proposed to be made thereon;

to mark such levels, boundaries and the line by placing marks and cutting trenches; and

where otherwise the survey cannot be completed and the levels taken and the boundaries and line marked, to cut down and clear away any part of any standing crop, fence or jungle

Provided that no person shall enter into any building or upon any enclosed Court or garden attached to a dwelling-house unless with the consent of the occupier thereof without previously giving such occupier at least seven days' notice in writing of his intention to do so.”

Undoubtedly, the sanctity of the public purpose gathers supremacy over the individual interest. Public purpose varies with the time, place and need of the society which furthers the

general interest of the community as opposed to the particular interest of the individual. Though the exact meaning of public purposes conclusively is not available in the statute and it is most pertinent to demonstrate the probable, alike, synonymous literal meaning of the same which would be quite beneficial to understand the issue. The term 'Public Purpose' has been defined in Black's Law Dictionary (5th Edition) as under:-

“A public purpose or public business has for its objective the promotion of the public health, safety, morals, general welfare, security, prosperity and contentment of all the inhabitants or residents within a given political division, as, for example, a State, the sovereign powers of which are exercised to promote such public purpose or public business.”

The Land Acquisition Act, 1894 is a special law which had been enacted for the acquisition of land for public purposes. This Act is based upon the doctrine of “Salus populi suprema lex” that the interests of the public are supreme and that the private interests are subordinate to the interest of the state. Further, the public purpose has already received different approach of meaning according to the time, place and need of the society which can only be ascertained and defined by the government and if a government reaches conclusion and declares an object as a public purpose than it obtains the status of a part of the state services and its benefit would be extendable, un-discriminately to a community or public at large and such determination of public purpose would be treated as final.

The acquisition of land other than for public purposes will be ultra vires of provision of Article 24 of the Constitution of the Islamic Republic of Pakistan as well as the Land Acquisition Act, 1894 and under the law there is no scope for acquisition of land other than for public purpose. The object of Notification under Section 4 of the Act discloses only the intention and need of the Govt. which is issued to give notice to public at large that land subject matter of Notification is required for public purposes, such Notification is merely an introductory measure, tentative in nature and furnishes the foundation of subsequent proceedings for acquisition. Further, it is a caution to the public that any transaction/alienation made subsequently would be at the risk and cost of the respective parties. Purpose of such Notification is to carry on preliminary investigation to find out whether said land is required for that very public purpose or otherwise. The government through such Notification expresses its tentative primary intention to acquire land for public purposes which could not be considered as conclusive and ultimate decision of the government rather it is a precautionary notice/warning to the public at large. The Hon'ble Supreme Court of Pakistan resolved this issue in a case reported as Muhammad Ashiq & Another Vs. Water and Manpower Development Authority,

Lahore through Chairman, WAPDA House & Another (PLD 2008 SC 335) and held as under:-

“It may be explained here that notification issued under Section 4 of the Land Acquisition Act, in fact, empowers the Provincial Government and its officers specially or generally to enter upon the lands, to take its survey and to perform other acts as contained in the above noted section. In other words, the notification issued and published under this section 4 of Land Acquisition Act, 1894 is a preliminary step which facilitates the Government and its officers not only to perform survey of the land but to decide and determine as to which piece of land was finally required to be acquired and the land to be left ultimately for the purpose of acquisition, keeping in view the aim and purpose for which the land was being acquired. Therefore, the notification which was got published under section 4 of the Land Acquisition Act, could not be termed as an ultimate and final decision of the Government to acquire the land notified in the aforementioned Notification.”

Another reliance is also placed on a judgment titled as Bostan Vs. Land Acquisition Collector, Rawalpindi and 4 others (PLD 2004 Lahore 47). As regard the reliance made by the learned Single Judge in Chamber on judgment dated 25.01.2022 passed in Writ Petition No.9429/2021 is concerned, suffice it to say that the operation of said judgment has been suspended by the Hon'ble Supreme Court of Pakistan vide order dated 31.01.2022 passed in Civil Petition No.149 of 2022 titled as Province of Punjab through Chief Secretary, Government of the Punjab, Lahore, etc. Vs. Public Interest of Law Association of Pakistan, Karachi and others, thus the observance of said dictum in subsequent judicial determination requires extraordinary circumspection rather it would be most suitable to await final verdict on the issue of the Hon'ble Apex Court of the country.

9. Further, the respondents have failed to bring on record any mala fide of the appellants in acquiring the land rather the same is being acquired for defence purpose in order to combat the emerging internal / external or global challenges and safeguard the solidarity and integrity of the nation. Reliance is placed on a judgment titled as Sajida Maqsood Vs. Azad Government through

Chief Secretary and 5 others (2013 YLR 1713). The notification under Section 4 of the Land Acquisition Act, 1894 was issued for acquisition of land after due process of law and no Court is competent to reverse the acquisition of land as after acquisition the land vests with the acquiring agency / Department i.e. “Pakistan Air Force for Operational purpose Air Base, Multan”. Reliance in this regard is placed on a judgment titled as Mian Dost Muhammad and others Vs. Province of Punjab and others (1982 SCMR 1078). Further, after issuance of notification under Section 4, 6 & 17(4) of the Act *ibid*, title of the said land stood transferred to the acquiring Department “Pakistan Air Force” without any bar. Reliance is placed on a judgment titled as Province of Punjab through A.D. Fisheries Sialkot Vs. Rana Abdul Hameed and others (2014 SCMR 1187).

10. Even otherwise, the petitioners challenged the notification 10.02.2022 passed by the Deputy Commissioner as well as notification dated 20.07.2022 under Section 4 of the Land Acquisition Act, 1894 in the Writ Petition [No.2576/2022] with the prayer as under:

“For the foregoing reasons it is very humbly prayed that the impugned order dated 10.02.2022 (Annex-D) passed by the District Collector, Multan may very graciously be declared as illegal, unlawful, not speaking and ab-initio null and void order and by setting aside the same, petitioners’ representation (Annex-C) against the Notification No.89/DC/LAC dated 20.07.2022 (Annex-E) may kindly be accepted in the supreme interest of justice.”

The aforesaid petition was filed on 21.02.2022 whereas notification under Section 17(4) & 6 of the Act *ibid* was issued on 24.02.2022 as such the petitioners have filed the writ petition prior to issuance of said notification. The respondents/writ petitioners did not amend the prayer reproduced above, however, they filed an application [C.M. No.2608/2022] through which, the respondents challenged notification issued under Section 17(4) and 6 of the Act *ibid* while relying on a judgment titled as

Mst. Amina Begum and others Vs. Mehar Ghulam Dastgir (PLD 1978 SC 220). The said application was fixed for hearing on 11.04.2022 but it was never allowed by the Court.

11. Furthermore, the respondents/writ petitioners neither raised any objection in respect of any violation of Environment Laws by the appellants while acquiring the land in question in their Writ Petition nor filed any application in this regard rather the learned Single Judge in Chamber of his own in a *suo moto* exercise of jurisdiction declared the notification under Section 4 of the Act *ibid* as without lawful authority and void *ab initio* in paragraph No.9 of impugned judgment whereas High Court is debarred to take *suo moto* action as no such jurisdiction is vested with it by the law and the Constitution. This Court has discussed this issue in detail regarding exercise of *suo moto* jurisdiction in a recent judgment dated 19.02.2025 passed in I.C.A. No.53628/2024 titled as Federation of Pakistan through Secretary, Ministry of Interior, Government of Pakistan Vs. Ashba Kamran etc. and held as under:

“6. The learned Single Judge in Chamber in a *suo moto* action, brushed aside the Rule 7(A) of Rules, 2020 inserted/endorsed by the incumbent elected Federal Government on 28.03.2024 and appointment of Chairman, NADRA. The learned Single Judge in Chamber in paragraph No.20 of impugned judgment dated 06.09.2024 while dismissing the objections raised regarding the jurisdiction noted as under:

“20. In view of the above, objection to the assumption of jurisdiction is dismissed, and it is held that court is empowered to inquire and determine that if exercise of authority by the Executive/Federal Government, in the guise of Rule-7A of the Rules, 2020, is authorized by, or otherwise, consistent with the terms of delegation under the enactment and purpose thereof.

I now proceed to decide the underlying controversy that ‘whether act of direct appointment of respondent No.6 is legally covered within the terms of delegation and is in accord with the conditions prescribed, regarding appointment of Chairman, in the enactment, which is the Ordinance, 2000.’”

It is well-settled law that High Court cannot take *suo moto* action as no such jurisdiction is vested in it. Reliance in this regard is placed on a latest judgment dated 20.11.2024 passed by the Hon'ble Supreme Court of Pakistan in **Civil Petition No.767 of 2022** titled as Federal Government Employees Housing Authority through its Director General, Islamabad Vs. Ednan Syed and others, the relevant portion whereof is reproduced as under :

“12. This Court has consistently ruled that the High Courts do not have suo motu jurisdiction and as such the constitutional scheme never intended to confer such powers on the High Courts. This Court in the Abdullah Jumanji judgment, authored by one of us (Muhammad Ali Mazhar, J.), has held that the High Court cannot assume suo motu jurisdiction by overreaching or overstretching its constitutional limits. It is constitutionally impermissible for the courts to expand and enlarge their jurisdictional domain, which is neither allowed by the Constitution nor by the law. In the Taufiq Asif case, this Court has held that the High Court cannot grant a relief, which is not even sought in the petition. As per the Akhtar Abbas case, ‘it is settled law that in writ proceedings, the relief must be confined to the prayer made in the writ petition and the High Court cannot issue a writ suo motu’. Hence, in view of the dictum laid down by this Court, the High Court cannot on its motion declare the policy as unconstitutional and illegal.”

(emphasis supplied)

In a case the learned Division Bench of Peshawar High Court on receipt of information from PSO to the Hon'ble Chief Justice, Peshawar High Court, Peshawar took action and passed judgment 26.08.2013. The Hon'ble Supreme Court of Pakistan reversed the judgment dated 26.08.2013 in its judgment cited as Dr. Imran Khattak and another Vs. Ms. Sofia Waqar Khattak, PSO to Chief Justice and others (2014 SCMR 122) and held that the High Court under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 has no authority to exercise *suo moto* jurisdiction. The relevant portion of the judgment (supra) is reproduced as under:

“8.....We have, therefore, no hesitation to hold that the High Court could not exercise *Suo Motu* jurisdiction under Article 199 of the Constitution of Pakistan. The more so when we have noticed that such jurisdiction has stridently been used even in the matters which are clearly and squarely outside the jurisdiction of a High Court.”

In a case having similar facts to the instant matter, appointment of a person was challenged who was appointed for a period of two years in 2015. During the pendency of the writ petition, period of appointment was expired and that person was granted further extension of two years. Learned Single Judge in Chamber, High Court of Balochistan set aside the said extension order vide judgment dated 08.11.2017

passed in Writ Petition No.721/2015 but the said judgment was set aside by the Hon'ble Supreme Court of Pakistan vide judgment cited as Jahanzaib Malik Vs. Balochistan Public Procurement Regulatory Authority through Chairman Board of Directors and others (2018 SCMR 414) and held that first appointment was under challenged whereas subsequent extension was not challenged and the High Court has no power to set aside fresh appointment. For ready reference, relevant portion of judgment (supra) is reproduced as under:

“9. In addition, we notice that the 2 years contract of the petitioner expired on 08.04.2015. In consequence of which the Constitution Petition as originally filed was rendered infructuous. The petitioner was granted a further extension of 2 years vide office order dated 29 August, 2017 with effect from 08.04.2017. The said office order was not challenged by respondent No.3 2017 either through amendment in the Constitutional Petition or by filing a fresh petition. By taking Suo Motu Notice of such extension, the High Court appears to have exceeded its jurisdiction for reasons which are not legally sustainable. In addition, through the office order dated 29th August, 2017, six other officials of Balochistan Public Procurement Regulatory Authority had been granted two years extension of service. Such employees were neither before the High Court nor were their appointments or reappointment orders under challenge. Yet without hearing the said persons or considering their cases, the High Court proceeded to set aside their extensions also, by setting aside office order dated 29.08.2017. This is an additional ground for our inability to uphold the judgment of the High Court.”

(emphasis supplied)

The Hon'ble Supreme Court of Pakistan while rendering judgment titled as Mian Irfan Bashir Vs. The Deputy Commissioner (D.C.), Lahore and others (PLD 2021 SC 571) held that the learned Single Judge in Chamber while deciding a matter regarding wearing of helmet, removal of signboards etc. was not pending before the High Court as such no direction in this regard could not be issued suo moto. For ready reference, relevant portion of judgment (supra) is reproduced as under:

“3. In the instant case, the direction against the motorcyclists (who do not wear helmets) and the petrol pump owners is a suo motu exercise of juridical power not available to the High Court under the Constitution. There was no such lis or dispute before the High Court. The grievance agitated before the High Court was regarding the signboards and advertisements put up by the traders on the Mall Road and this matter was not even remotely connected to the motorcyclists, helmets or the purchase of petrol by them.”

The Peshawar High Court, Peshawar took notice of the price of the poultry/dairy products and passed different directions in the said case. The said orders/directions were assailed and the Hon'ble Supreme Court of Pakistan while setting aside the

aforesaid orders/instructions in its judgment cited as Messrs Sadiq Poultry (Pvt.) Ltd. Vs. Government of Khyber Pakhtunkhwa through Chief Secretary and others (PLD 2023 SC 236) held that the High Court has no *suo moto* power and only Supreme Court of Pakistan under Article 189 of the Constitution of the Islamic Republic of Pakistan, 1973 has power to exercise such power. For ready reference, relevant portion of judgment (*supra*) is reproduced as under:

“6. It is settled law that the High Court does not have *suo motu* jurisdiction under Article 199 of the Constitution of this Islamic Republic of Pakistan (the "Constitution") as compared to this Court which has been conferred exclusive jurisdiction in the matter by the Constitution in terms of Article 184(3).....The learned High Court could not have transgressed its jurisdiction under Article 199 of the Constitution by passing an order which not only amounts to exercise of *suo motu* jurisdiction but also an encroachment on the jurisdiction executive.”

Further reliance is placed on cases titled as Abrar Hassan Vs. Government of Pakistan and another (PLD 1976 SC 315), Akhtar Abbas and others Vs. Nayyar Hussain (1982 SCMR 549), Mian Muhammad Nawaz Sharif and others Vs. Muhammad Habib Wahab Al-Khairi and others (2000 SCMR 1046), Raja Muhammad Nadeem Vs. The State and another (PLD 2020 SC 282), Taufiq Asif and others Vs. General (Retd.) Pervez Musharraf and others (PLD 2024 SC 610) and Abdullah Jumani and others Vs. Province of Sindh and others (2024 SCMR 1258).

From perusal of the aforesaid dicta laid down by the Hon'ble Supreme Court of Pakistan, it is clear in express terms that a High Court has no *suo moto* jurisdiction under Article 199 of Constitution of Islamic Republic of Pakistan, 1973 to encroach upon the jurisdiction of the executive.”

12. The land in question has been acquired for expansion of air base of Pakistan Air Force and in the present regional and geopolitical state of affairs, such enhancement and advancement of defence infrastructure is need of the hour for the defence of this country.

13. Resultantly, this Intra Court Appeal is **allowed** and by setting aside the judgment dated 12.05.2022 passed by the

learned Single Judge in Chamber, the Writ Petition No.2576/2022 filed by the respondents No.1 to 5 is dismissed.

(Syed Ahsan Raza Kazmi)
Judge

(Ch. Muhammad Iqbal)
Judge

Announced in open Court on 29.10.2025.
Approved for reporting.

Judge

Judge

Abdul Hafeez /
Khuram H.

